COROUTE · **OPERATORS & PARTNERS**

Rider Consent and Waiver (DRAFT)

DRAFT · FOR LEGAL REVIEW · NOT LEGAL ADVICE

DRAFT FOR LEGAL REVIEW. Not legal advice. This is a template that operators may adapt for their own rides, after review by a qualified lawyer in their jurisdiction. CoRoute does not provide legal advice, and the enforceability of waivers in India varies. Square brackets mark text to complete or confirm. The operator, not CoRoute, is the party that runs the ride and asks the rider to sign.

Organiser: [Operator legal name], [address], [registration / GST, if any] ("the Organiser")

Ride / tour: [name], [dates], [route summary]

Rider: [full name] · CoRoute username: [@username] · Date of birth: [dd/mm/yyyy]

Emergency contact (as also set in the CoRoute app): [name, relationship, phone]

1. The ride

1.1 I am joining a motorcycle ride organised by the Organiser. I understand that motorcycling involves inherent risks, including falls, collisions, road and weather hazards, mechanical failure, wildlife, altitude and remoteness from medical help, and that these can lead to serious injury or death.

1.2 I confirm that I hold a valid driving licence for the vehicle I ride, that the vehicle is registered, insured and roadworthy (or provided by the Organiser under a separate agreement), and that I will wear a certified helmet and suitable protective gear.

1.3 I will follow traffic law, the Organiser's briefing and the instructions of the ride lead and sweeper. I will not ride under the influence of alcohol or drugs.

1.4 I have disclosed to the Organiser any medical condition that may affect my safe participation: [ ] none / [ ] as follows: _____

2. Use of the CoRoute app on this ride

2.1 The Organiser uses the CoRoute app and the CoRoute Operator console to organise the ride. My use of the app is also governed by CoRoute's own Terms and Privacy Policy, which I accepted when I created my account.

2.2 **What the Organiser can see.** By joining the Organiser's club or ride on CoRoute, I understand that the Organiser (its owner and co-organisers) can see:

- (a) my CoRoute username and first name, my role on the ride and when I joined or left;
- (b) **during the Organiser's live rides only**, my position, speed and phone battery level;
- (c) after the ride, attendance information: joined or left times, whether I finished, distance and incident type, time and outcome. Reports do not include map coordinates.

2.3 **Data shared during an SOS only.** If I raise an SOS, or my phone raises a crash alert, during the Organiser's ride, and **only while that alert is open**, the Organiser can view my emergency contact's name and phone number, my phone number, the medical information I saved in the app (such as blood group, allergies and notes) and my last known position. The purpose is to help me in an emergency. CoRoute

records each such view in an audit log. The Organiser cannot see this information at any other time through CoRoute.

2.4 I understand that the same safety information may also reach my ride group, my guardian (if I set one) and riders who accept to help me during an open alert. [LEGAL: check that CoRoute's current Privacy Policy describes this sharing and the operator SOS view. A Privacy Policy update for the DPDP Act is listed as Planned (v3.57) in CoRoute's release plan.]

2.5 I can leave the Organiser's club at any time in the CoRoute app or on the CoRoute website (/clubs). Leaving does not delete records the Organiser has lawfully exported before I left. [LEGAL: confirm the operator's retention and erasure commitments, see the Data Processing Note.]

3. Limits of technology

3.1 I understand that CoRoute's safety features (crash detection, "Bike down?" checks, SOS, emergency texts, group alerts and live location) **depend on my phone, its battery, its sensors, mobile signal and GPS**. They may fail to detect an incident, may raise false alarms, and may be delayed or fail to deliver. They are aids, **not a substitute** for calling emergency services, for safe riding or for the Organiser's own safety arrangements.

3.2 In an emergency, the first step is to **call 112**. Neither CoRoute nor the Organiser guarantees that emergency services will be contacted automatically.

4. Consent

4.1 I consent to the processing described in sections 2.2 and 2.3 for the purposes of organising the ride and responding to emergencies. [LEGAL: confirm the lawful basis under the Digital Personal Data Protection Act, 2023: consent under section 6 and/or the legitimate use for medical emergencies under section 7. Confirm the notice requirements, the language and the right to withdraw consent.]

4.2 Withdrawal: I may withdraw my consent by leaving the club or the ride. Withdrawing consent may mean I cannot take part in the Organiser's rides on CoRoute. [LEGAL: confirm.]

5. Release and assumption of risk

5.1 [LEGAL TO DRAFT: the assumption of risk and release clauses appropriate to Indian law, including the limits on excluding liability for negligence and statutory rights that cannot be waived. Include the insurance position of the Organiser (third party and personal accident) and whether the rider is required to hold personal accident cover.]

5.2 Nothing in this document limits any liability that cannot be limited by law.

6. Photos and media (optional)

[ ] I agree / [ ] I do not agree that the Organiser may use photos or videos of me taken on the ride for [purpose]. [LEGAL: separate, optional consent.]

7. Minors

Riders under 18: [LEGAL: the Organiser's policy. Under the DPDP Act, processing a child's personal data requires verifiable consent of a parent or lawful guardian. Licence age rules also apply.]

Rider signature: _____ **Date:** _____

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Parent / guardian (if under 18): _____ **Date:** _____

For the Organiser: _____ **Date:** _____

Language: [LEGAL: provide in English and the rider's preferred language where required.]

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